CONG HOA XA HOI CHU NGHIA VIET NAM

Doc lap - Tu do - Hanh phuc

LUAT XU LY VI PHAM HANH CHINH

Luat Xu ly vi pham hanh chinh so 15/2012/QH13 ngay 20 thang 6 nam 2012
cua Quoc hoi, co hieu luc ke tu ngay 01 thang 7 nam 2013, duoc sua doi bo sung boi:

1. Luat Hai quan so 54/2014/QH13 ngay 23 thang 6 nam 2014;
2. Luat Thuy san so 18/2017/QH14 ngay 21 thang 11 nam 2017;
3. Luat so 67/2020/QH14 ngay 13 thang 11 nam 2020;
4. Luat so 09/2022/QH15 ngay 09 thang 11 nam 2022;
5. Luat Thanh tra so 11/2022/QH15 ngay 14 thang 11 nam 2022;
6. Luat so 56/2024/QH15 ngay 29 thang 11 nam 2024;
7. Luat so 88/2025/QH15 ngay 25 thang 6 nam 2025.

Quoc hoi ban hanh Luat Xu ly vi pham hanh chinh.

Luat Thuy san so 18/2017/QH14 co can cu ban hanh nhu sau:

'Can cu Hien phap nuoc Cong hoa xa hoi chu nghia Viet Nam;'

Luat so 67/2020/QH14 sua doi, bo sung mot so dieu cua Luat XLVPHC;

Luat so 09/2022/QH15 sua doi, bo sung mot so dieu cua Luat Tan so vo tuyen dien;

Luat Thanh tra so 11/2022/QH15;

Luat so 56/2024/QH15 sua doi luat Chung khoan, Ke toan, Kiem toan, Ngan sach...;

Luat so 88/2025/QH15 ngay 25 thang 6 nam 2025 sua doi bo sung mot so dieu Luat XLVPHC.

Co hieu luc thi hanh ke tu ngay 01 thang 7 nam 2025.

Phan thu nhat: NHUNG QUY DINH CHUNG

Dieu 1. Pham vi dieu chinh

Luat nay quy dinh ve xu phat vi pham hanh chinh va cac bien phap xu ly hanh chinh.

Dieu 2. Giai thich tu ngu

1. Vi pham hanh chinh la hanh vi co loi do ca nhan, to chuc thuc hien, vi pham quy dinh cua phap luat ve quan ly nha nuoc ma khong phai la toi pham.

2. Xu phat vi pham hanh chinh la viec nguoi co tham quyen ap dung hinh thuc xu phat, bien phap khac phuc hau qua doi voi ca nhan, to chuc vi pham.

3. Bien phap xu ly hanh chinh: giao duc tai xa phuong dac khu, truong giao duong...

4. Bien phap thay the xu ly vi pham hanh chinh doi voi nguoi chua thanh nien.

Dieu 2. Giai thich tu ngu (Tiep theo)

5. Tai pham: da bi ra quyet dinh xu phat nhung chua het thoi han ma lai vi pham;

6. Vi pham hanh chinh nhieu lan: thuc hien hanh vi nhung chua bi xu ly;

7. Vi pham hanh chinh co to chuc: cau ket voi ca nhan, to chuc khac;

8. Giay phep, chung chi hanh nghe;

9. Cho o cua cong dan;

10. To chuc la co quan nha nuoc, to chuc kinh te, chinh tri xa hoi;

11. Tinh the cap thiet;

12. Phong ve chinh dang.

13. Su kien bat ngo;

14. Su kien bat kha khang;

15. Nguoi khong co nang luc trach nhiem hanh chinh;

16. Nguoi nghien ma tuy;

17. Nguoi dai dien hop phap.

Dieu 3. Nguyen tac xu ly vi pham hanh chinh

a) Moi vi pham phai duoc phat hien, ngan chan kip thoi, xu ly nghiem minh;

b) Tien hanh nhanh chong, cong khai, khach quan, dung tham quyen;

c) Can cu tinh chat, muc do, hau qua, tinh tiet giam nhe, tang nang;

d) Mot hanh vi vi pham hanh chinh chi bi xu phat mot lan;

d) Nguoi co tham quyen xu phat co trach nhiem chung minh vi pham;

e) Muc phat tien doi voi to chuc bang 02 lan muc phat tien doi voi ca nhan.

2. Nguyen tac ap dung cac bien phap xu ly hanh chinh

a) Thuoc mot trong cac doi tuong quy dinh tai Dieu 90, 92, 94, 96;

b) Tien hanh dung tham quyen, can cu muc do hau qua nhan than;

Dieu 4. Tham quyen quy dinh ve xu phat VPHC

Chinh phu quy dinh hanh vi, hinh thuc, muc xu phat, tham quyen lap bien ban...

Dieu 5. Doi tuong bi xu ly vi pham hanh chinh

1. a) Tu du 14 tuoi den duoi 16 tuoi: xu phat ve vi pham do co y;

Tu du 16 tuoi tro len: bi xu phat ve moi vi pham hanh chinh;

Quan doi nhan dan, Cong an nhan dan vi pham thi xu ly nhu cong dan khac;

b) To chuc bi xu phat ve moi vi pham do minh gay ra;

c) Ca nhan, to chuc nuoc ngoai vi pham tren lanh tho Viet Nam.

Dieu 6. Thoi hieu xu ly vi pham hanh chinh

a) Thoi hieu xu phat vi pham hanh chinh la 01 nam, tru cac truong hop...

Thoi hieu 02 nam doi voi cac linh vuc:

Ke toan; hoa don; phi, le phi; bao hiem; chung khoan; so huu tri tue;
xay dung; thuy san; dat dai; xuat nhap khau; san xuat buon ban hang cam, hang gia;
moi truong; khoang san; khiet nai to cao...

Vi pham hanh chinh ve thue: theo phap luat ve quan ly thue.

b) Thoi diem tinh thoi hieu: hanh vi da ket thuc hoac dang thuc hien.

c) Truong hop co quan tien hanh to tung chuyen den: keo dai them 01 nam.

Thoi hieu ap dung bien phap giao duc tai xa, phuong, dac khu: 01 nam;

Thoi hieu dua vao truong giao duong: 01 nam;

Thoi hieu dua vao co so giao duc bat buoc: 01 nam; cai nghien: 03 thang.

Dieu 7. Thoi han duoc coi la chua bi xu ly VPHC

1. 06 thang ke tu ngay chap hanh xong canh cao; hoac 01 nam ke tu ngay chap hanh xong quyet dinh xu phat khac ma khong tai pham thi coi la chua bi xu ly.

2. 02 nam doi voi bien phap xu ly hanh chinh.

Dieu 8. Cach tinh thoi gian, thoi han, thoi hieu

Ap dung theo quy dinh cua Bo luat Dan su. Ban dem tinh tu 22h den 06h sang.

Dieu 9. Tinh tiet giam nhe

1. Ngan chan, giam bot hau qua hoac tu nguyen boi thuong;

2. Tu nguyen khai bao, thanh that hoi loi;

3. Bi kich dong ve tinh than do hanh vi trai phap luat cua nguoi khac;

4. Phu nu mang thai, nguoi gia yeu, nguoi khuyet tat...

Dieu 10. Tinh tiet tang nang

a) Co to chuc; b) Nhieu lan, tai pham; c) Xui giuc nguoi chua thanh nien;

d) Lang ma, phi bang nguoi thi hanh cong vu; co tinh chat con do;

e) Loi dung chuc vu quyen han; g) Loi dung thien tai dich benh;

k) Tron tranh che giau; l) Quy mo lon, so luong gia tri hang hoa lon.

Dieu 11. Nhung truong hop khong xu phat VPHC

1. Tinh the cap thiet; 2. Phong ve chinh dang;

3. Su kien bat ngo; 4. Su kien bat kha khang; 5. Chua du tuoi bi xu phat.

Dieu 12. Nhung hanh vi bi nghiem cam

1. Giu lai vu vi pham co dau hieu toi pham de xu ly hanh chinh;

2. Sach nhieu, doi, nhan tien, dung tung, bao che nguoi vi pham.

Dieu 12. Nhung hanh vi bi nghiem cam (Tiep theo)

3. Ban hanh trai tham quyen van ban quy dinh ve VPHC;

4. Khong xu phat, khong ap dung bien phap khac phuc hau qua;

5. Xu phat khong kip thoi, khong nghiem minh, khong dung tham quyen;

6. Xac dinh hanh vi khong dung, ap dung muc phat khong dung;

7. Can thiep trai phap luat vao viec xu ly VPHC;

8. Keo dai thoi han ap dung bien phap;

9. Su dung tien thu duoc tu nop phat trai quy dinh ve ngan sach;

10. Gia mao ho so; 11. Xam pham tinh mang suc khoe; 12. Chong doi.

Dieu 13. Boi thuong thiet hai

Nguoi vi pham gay thiet hai phai boi thuong theo Bo luat Dan su.

Dieu 14. Trach nhiem dau tranh phong, chong vi pham hanh chinh

Ca nhan, to chuc co trach nhiem chap hanh, to cao, dau tranh phong chong.

Dieu 15. Khieu nai, to cao va khoi kien

Ca nhan to chuc co quyen khieu nai, khoi kien theo quy dinh.

Dieu 16. Trach nhiem cua nguoi co tham quyen xu ly

Tuan thu nghiem ngat phap luat; vi pham bi xu ly ky luat hoac truy cuu Hinh su.

Dieu 17. Quan ly cong tac thi hanh phap luat ve xu ly VPHC

1. Chinh phu thong nhat quan ly trong pham vi ca nuoc.

2. Bo Tu phap chiu trach nhiem truoc Chinh phu quan ly chung:

a) De xuat xay dung van ban quy pham phap luat;

b) Thong ke, xay dung, quan ly Co so du lieu quoc gia ve xu ly VPHC;

c) Huong dan tap huan nghiep vu; d) Kiem tra, thanh tra;

3. Cac bo, nganh phoi hop cung cap thong tin.

4. Toa an nhan dan toi cao, Kiem toan nha nuoc phoi hop bao cao.

5. Uy ban nhan dan cac cap quan ly tai dia phuong: chi dao, kiem tra, thanh tra.

6. Co quan cua nguoi co tham quyen xu phat co trach nhiem cap nhat thong tin, ket qua xu ly vao Co so du lieu quoc gia.

Dieu 18. Trach nhiem cua thu truong co quan, don vi

Thuong xuyen kiem tra, thanh tra; khong duoc can thiep trai phap luat; khong de xay ra tham nhung; kip thoi sua doi huy bo quyet dinh sai sot.

Dieu 18a. Xu ly vi pham hanh chinh tren moi truong dien tu (Moi 2025)

1. Viec xu ly vi pham hanh chinh tren moi truong dien tu duoc thuc hien khi bao dam dieu kien ve co so ha tang, ky thuat, thong tin.

2. Yeu cau bao dam:

a) Tuan thu quy dinh ve VPHC va phap luat ve giao dich dien tu;

b) Bao dam tinh toan ven, xac thuc, an toan du lieu;

c) Ket noi he thong, chia se du lieu, thong tin chinh xac kip thoi;

3. Chinh phu quy dinh chi tiet Dieu nay.

Dieu 19. Giam sat cong tac xu ly vi pham hanh chinh

Quoc hoi, Hoi dong nhan dan cac cap, Mat tran To quoc va moi cong dan giam sat.

Dieu 20. Ap dung Luat XLVPHC o ngoai lanh tho Viet Nam

Cong dan, to chuc Viet Nam vi pham phap luat hanh chinh o ngoai lanh tho co the bi xu phat vi pham hanh chinh theo quy dinh cua Luat nay.

(Xem tiep Cong bao so 1099 + 1100)

VAN PHONG CHINH PHU XUAT BAN
Dia chi: So 1, Hoang Hoa Tham, Ba Dinh, Ha Noi
Dien thoai lien he:
- Noi dung: 080.44417
- Phat hanh: 080.44243
Email: congbao@chinhphu.vn
Website: http://congbao.chinhphu.vn

DOAN CO SO PHONG CANH SAT KINH TE - CONG AN TINH GIA LAI SO HOA